

9:00 AM

Line 2

25-CIV-00267 MCGUIRE AND HESTER, A CALIFORNIA CORPORATION VS. CARMEL
CONSTRUCTION WEST, LLC, ET AL

MCGUIRE AND HESTER, A CALIFORNIA CORPORATION
CARMEL CONSTRUCTION WEST, LLC

A ROBERT ROSIN
PETER V. DESSAU

Defendant City of Belmont's Motion for Judgment on the Pleadings

TENTATIVE RULING:

The Motion for Judgment on the Pleadings by Cross-Defendant City of Belmont ("City") to the First Amended Cross-Complaint ("FACC") of Defendants and Cross-Complainants Carmel Construction West, LLC, CP VII 815 Belmont, LLC and Argonaut Insurance Company ("Carmel Defendants") is DENIED.

A motion for judgment on the pleadings may be brought on the ground that a cause of action does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., § 438, subd. (c).) The grounds for the motion shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (*Id.*, subd. (d).) "Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit." (*Ibid.*)

City's Request for Judicial Notice

The City did not specify the matter for which judicial notice is requested in the Notice of Motion or Memorandum. Nevertheless, the City filed a separate Request for Judicial Notice, in which judicial notice of the Cost Sharing Agreement ("CSA") is requested. The City asserts that the court may take judicial notice of this contract and facts that clearly derive from the contract's legal effect, citing *Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 754 (*Scott*).

The Carmel Defendants oppose the request contending the CSA is beyond the scope of judicial notice and the City's reliance on *Scott* is misplaced. They further argue that the City has not authenticated the CSA or provided sufficient information to verify that the CSA is a true and correct copy, and that the CSA is an unsigned copy of what the City avers is a true and correct copy. Finally, they assert that the City asks the court to assume the truth of terms contained in the CSA.

In *Scott*, JPMorgan Chase filed a demurrer to the second amended complaint arguing that it rehashed the plaintiff's earlier pleading. (*Scott, supra*, 214 Cal.App.4th at p. 750.) JPMorgan did

not file a new request for judicial notice with its demurrer, but the parties and the trial court proceeded as if the earlier request for judicial notice could be considered in ruling on the demurrer. (*Ibid.*) In sustaining without leave to amend the demurrer to the second amended complaint, the court noted that the prior request for judicial notice was granted and based its ruling on these previously judicially noticed documents. (*Id.* at pp. 750-751.) This included judicial notice of a 2008 purchase agreement pursuant to which JP Morgan Chase acquired the assets of Washington Mutual from the Federal Deposit Insurance Corporation. (*Id.*, at p. 751.) On appeal, the plaintiff argued the trial court erred in taking judicial notice of the agreement and the facts therein. (*Id.* at p. 752.)

The Court of Appeal found that official acts by the FDIC were subject to judicial notice under Evidence Code section 452(c), which provides for judicial notice of official acts of the legislative, executive and judicial departments of the United States and of any state of the United States. (*Scott, supra* at p. 752.) This includes executive acts performed by administrative agencies. (*Ibid.*) Further, judicial notice may be taken under Evidence Code section 452(h) of facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy. (*Id.* at p. 753.) The purchase agreement and the transfer to JP Morgan of Washington Mutual assets were not reasonably subject to dispute and were capable of ready determination since the plaintiff did not question with specificity the authenticity, completeness or legal effect of the agreement posted on the official FDIC website. (*Ibid.*) The authenticity of the agreement was also buttressed by its posting on the FDIC website. (*Id.* at p. 755.)

In contrast, a court would not take judicial notice of the existence of a contract between private parties under Evidence Code section 452(h). (See *Gould v. Maryland Sound Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1145.) In *Gould*, an employer requested that the court take judicial notice of a written employment contract between the employer and employee under section 452(h). (*Ibid.*) The Court of Appeal found that the existence of a contract between private parties cannot be established by judicial notice under section 452(h). (*Ibid.*) The parties disputed whether an oral or written contract existed, and thus the dispute could not be resolved by resorting to facts and propositions that are not reasonably subject to dispute. (*Ibid.*) “Moreover, before a trial court could find that the existence of a contract was not reasonably subject to dispute the court would have to engage in the kind of fact-finding appropriate for a trial on the merits, not for a hearing on demurrer.” (*Id.*, at p. 1146.) Most matters subject to judicial notice can be established by reference to a statute, court file, treatise or other document, but a court cannot simply look at a piece of paper and conclude as a matter of law it is a contract between the parties. (*Ibid.*)

In this case, the City requests judicial notice pursuant to Evidence Code sections 452 and 453 without specifying which subdivision under section 452 applies. The City instead relies on *Scott*, which found judicial notice proper under Evidence Code section 452(c) and (h). Section 452(c) however, plainly does not apply here. Section 452(h) also does not assist as this is a purported contractual agreement that very well can be subject to dispute.. Even if the court found that the rationale in *Scott* applies to an agreement between two private parties, the City only provides an unsigned copy of the agreement. (Castella Decl., Exh. A.) The agreement is blank as to a signature, name and title. The date is also blank, even though the agreement purports to be

executed as of the effective date. It seems likely that the parties may have entered into a signed and dated agreement, but that is not before the court. As such, the City has not shown that this agreement is not reasonably subject to dispute and is capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy. The City's Request for Judicial Notice of the CSA is therefore DENIED.

First and Third Causes of Action

The City's Motion to the First and Third Causes of Action depend on the court taking judicial notice of the CSA. Since the court denies the request, the Motion for Judgment on the Pleadings to the First and Third Causes of Action is also DENIED.

Second Cause of Action

The City's arguments in support of the Motion to the Second Cause of Action rely on the subcontract between Plaintiff McGuire and Hester ("Plaintiff") and the Carmel Defendants. The City did not request judicial notice of it. (See City's Request for Judicial Notice.) As such, the Carmel Defendants argue that the City's arguments fail because they rely on the subcontract. In reply, the City claims that the subcontract is attached as an exhibit to the Complaint. (City's Reply, p. 4, fn. 1.)

As already mentioned, judicial notice of a matter is to be specified in the notice of motion or supporting authorities. (Code Civ. Proc., § 438, subd. (d).) Further, a request for judicial notice shall list the specific items of which judicial notice is requested. (Cal. Rules of Court, rule 3.1113(l); Cal. Rules of Court, rule 3.1306(c)(1).) Since the City did not request judicial notice of the subcontract, the court does not take judicial notice of it.

For this reason, the City's Motion to the Second Cause of Action is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

25-CIV-00428 SHANQUAN BAO VS. META PLATFORMS, INC.

SHANQUAN BAO
META PLATFORMS, INC.

BRUCE J HIGHMAN
RACHEL JAN MOROSKI

Defendant's Motion to Stay Pending Appeal

TENTATIVE RULING:

Defendant Meta, Inc., has moved for a stay of the proceedings in this matter, pending the outcome of its appeal of this Court's Order denying its motion to compel arbitration.

Defendant's motion for a stay is DENIED.

BACKGROUND

Plaintiff, a former employee of Defendant Meta, has sued Meta for (1) Libel, (2) Violation of Labor Code Section 1102.5, (3) Violation of the Fair Employment and Housing Act (FEHA), and (4) Tortious Violation of Public Policy. The third cause of action is a retaliation claim premised on Plaintiff's allegation that Meta took adverse employment actions against him for opposing conduct that he "reasonably believed violated statutes against sexual harassment." (Complaint, ¶¶ 39-40.) The underlying conduct at issue consists of allegations that Plaintiff's manager "engaged in unwelcome conduct of a sexual nature" toward an unspecified person by: (1) "showing a picture with his shirt pulled up and showing his belly," (2) bragging about knowing a beautiful couple, and (3) saying that he wanted children but could not have them because his in-laws were staying with him. (*Id.* at ¶ 27.) Plaintiff did not personally observe any of this alleged conduct; he was told about it secondhand or thirdhand by a member of his team. *Id.* Plaintiff alleges that he reported the manager's alleged conduct to Meta, that Meta investigated, and that the investigator concluded the manager did not violate any policy. (*Id.* ¶ 31.)

On March 24, 2026, this Court denied Defendant's motion to compel arbitration on the basis that Plaintiff's retaliation claim fell under the Ending Forced Arbitration Act ("EFAA"), rendering the pre-dispute arbitration agreement between the parties invalid. On May 18, 2026, Defendant filed a Notice of Appeal. On July 7, 2026, Defendant filed the instant motion for a stay pending appeal.

LEGAL STANDARD

Under Code Civ. Proc. § 1294(a), trial court proceedings are not automatically stayed during the pendency of an appeal of an order denying a motion to compel arbitration. However, trial courts
